SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 32
JUDICIAL OFFICER: JONI T HIRAMOTO
HEARING DATE: 04/24/2026

ALL APPEARANCES WILL BE BY ZOOM.

The tentative ruling will become the Court's ruling unless by 4:00 p.m. of the court day preceding the hearing, counsel or self-represented parties EMAIL THE DEPARTMENT at dept32@contracosta.courts.ca.gov to request argument and SPECIFY THE ISSUES to be argued.

Counsel or self-represented parties requesting argument must advise all other affected counsel and self-represented parties by no later than 4:00 p.m. of his or her intention to appear and of the issues to be argued.

Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (Local Rule 3.43(2).)

CourtCall will NOT be used by D32.

Zoom is approved for all hearings except Issue Conferences and Trials.

Dept. 32's telephone number is: (925) 608-1132.

Dept. 32's email address is: dept32@contracosta.courts.ca.gov.

Submission of Orders After Hearing in Department 32 Cases

The prevailing party must prepare an order after hearing in accordance with CRC 3.1312. The order must include appearances. If the tentative ruling becomes the Court's ruling, a copy of the Court's tentative ruling must be attached to the proposed order when submitted to the Court for issuance of the order.

Zoom hearing information

https://contracosta-courts-ca.zoomgov.com/j/1613360625?pwd=pSvvmR75t9Q2H5zOgagi9rbG4xeTUM.1

Meeting ID: 161 336 0625

Passcode: 180770

Law & Motion

1. 9:00 AM CASE NUMBER: C22-02021
CASE NAME: XIAO ZHENG VS. MICHAEL CISTERNINO
***HEARING ON MOTION IN RE: ATTORNEY'S FEES ON APPEAL OF DISCOVERY SANCTIONS ORDER**
FILED BY: CISTERNINO, MICHAEL
TENTATIVE RULING:

Motion off calendar.

2. 9:00 AM CASE NUMBER: C23-02945
CASE NAME: ARIANA MOORE VS. DOES 1-30, INCLUSIVE
HEARING ON SUMMARY MOTION JUDGMENT
FILED BY: BIKRAMJIT S. RANDHAWA AS TRUSTEE OF THE RANDHAWA REVOCABLE TRUST, DATED OCTOBER
TENTATIVE RULING:

On the Court's own motion, the hearing on the motion is continued to **9:00 a.m. on May 1, 2026**.

3. 9:00 AM CASE NUMBER: C24-00580
CASE NAME: LARY HANSHAW VS. HECTOR ROMO
***HEARING ON MOTION IN RE: STRIKE DEFENDANT STONEGATE COMMUNITIES, LLC'S ANSWER TO COMPLAINT**
FILED BY: HANSHAW, LARY P.
TENTATIVE RULING:

Motion unopposed – granted.

4. 9:00 AM CASE NUMBER: C25-00188
CASE NAME: JEFFREY PARKHURST VS. VOLKSWAGEN GROUP OF AMERICA, INC., A NEW JERSEY CORPORATION
***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO PROD OF DOCS, SET 1**
FILED BY: PARKHURST, JEFFREY
TENTATIVE RULING:

Motion withdrawn by moving party.

5. 9:00 AM CASE NUMBER: C25-01934
CASE NAME: GABRIEL BASSO VS. FRANCES TAMARO
HEARING ON DEMURRER TO: 1ST AMENDED COMPLAINT
FILED BY: OLSEN, BEN
TENTATIVE RULING:

Before the Court is Defendant Vanguard Properties, Inc., Defendant Ben Olsen, and Defendant Unjaree (Joy) Rayner (collectively, "Defendants" or "Vanguard")'s Demurrer. The Demurrer relates to Plaintiff Gabriel Basso and Plaintiff Esther Basso (collectively, "Plaintiffs")'s First Amended Complaint for (1) negligence; (2) breach of written contract for sale of real property; (3) fraud-intentional misrepresentation; (4) negligent misrepresentation; (5) breach of duty to disclose; (6) fraudulent concealment; (7) constructive fraud; (8) breach of covenant of good faith and fair dealing; and (9) declaratory relief.

Defendants demur to Plaintiffs' FAC on the grounds that Plaintiffs' claims are time-barred pursuant to CCP § 2079.4, as well as fail to state a cause of action under CCP 430.10(e), are uncertain under subsection (f), and it cannot be ascertained from the pleading whether the contract is written, is oral, or implied by conduct under subsection (g).

For the following reasons, the Demurrer is **sustained-in-part**, with leave to amend, with respect to the breach of contract cause of action, but otherwise **overruled**.

<u>Request for Judicial Notice</u>

Defendant requests judicial notice of the Plaintiffs' First Amended Complaint in this matter. While the courtesy is appreciated, the Court need not take judicial notice of pleadings in its own file.

<u>Brief Factual Background</u>

This case arises out of a real estate transaction for the Property located at 128 Danefield Place, Moraga, CA 94556. Vanguard represented both the seller and buyer in connection with the sale of the property to the Plaintiffs. (FAC at ¶ 9.)

The Complaint alleges that "[i]n a series of advertising materials, the Realtor Defendants advertised the Property as '...5 bedrooms and 3 newly updated baths. The kitchen was extensively remodeled including venetian plaster finish and maple cabinets...'" (FAC ¶ 9.) The FAC alleges that on or about October 7, 2021 Plaintiffs and sellers entered into a Purchase Agreement by which Plaintiffs agreed to purchase the Property for $2.3 million dollars. (FAC ¶ 10 and Ex. 1.)

The FAC further alleges that "[i]n connection with the purchase and sale of the Property, and prior to the close of escrow on November 2, 2021, the Realtor Defendants provided Plaintiffs with a variety of written real estate disclosures and made certain oral disclosures with regard to the Property, many of which were misleading, incomplete or untrue." (FAC at ¶ 11.)

Plaintiffs further allege "the Realtor defendants negligently failed to make a thorough and adequate inspection of the subject real property in that the Realtor defendants knew the three bathrooms had been recently remodeled, yet failed to perform an adequate inspection. After close of escrow, Plaintiffs discovered that the remodeled bathrooms were all done without the necessary permits and licenses." (Complaint ¶ 12.)

Plaintiffs allege that during subsequent investigation of the Property in January 2023, a number of "defects and deficiencies" were revealed, including poor workmanship and installation of the drainage systems, crack cinder block walls, deck around pool falling apart, damaged electrical wires, and deterioration of exterior elements, including windows and siding, as well as other things. (FAC ¶ 15.)

Plaintiffs allege that the defects in deficiencies in the Property have caused the value of the property to be significantly reduced. (FAC at ¶ 19.)

<u>Legal Standard</u>

"The function of a demurrer is to test the sufficiency of the complaint as a matter of law." (*Holiday Matinee, Inc. v. Rambus, Inc*. (2004) 118 Cal.App.4th 1413, 1420.) A complaint "is sufficient if it alleges ultimate rather than evidentiary facts" (*Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 550 ("*Doe*")), but the plaintiff must set forth the essential facts of his or her case "with reasonable precision and with particularity sufficient to acquaint [the] defendant with the nature, source and extent" of the plaintiff's claim. (*Doheny Park Terrace Homeowners Assn., Inc. v. Truck Ins. Exchange* (2005) 132 Cal.App.4th 1076, 1099.) Legal conclusions are insufficient. (*Id*. at 1098–1099; *Doe* at 551, fn. 5.) The

Court "assume[s] the truth of the allegations in the complaint, but do[es] not assume the truth of contentions, deductions, or conclusions of law." (*California Logistics, Inc. v. State of California* (2008) 161 Cal.App.4th 242, 247.)

<u>Analysis</u>

<u>Statute of Limitations</u>

Defendants argue that Plaintiffs' second, third, fourth, fifth, sixth, and seventh causes of action are barred by their respective statutes of limitations. For each cause of action, Defendants' argument is premised on their contention that Plaintiffs were on notice of the alleged fraud or misrepresentation by way of the inspection reports and disclosures and that the accrual period started on or before November 2, 2021.

In opposition, Plaintiffs argue that (as pled in their FAC), Plaintiffs did not discover Vanguard's failure to disclose until January 2023. (Opp. at 4:9-10 and FAC ¶ 15.) Additionally, they plead that "[a]ll limitations periods were tolled while the parties participated in the pre-litigation mediation process as required by the subject Agreement." (FAC at ¶ 21.)

Under the discovery rule, the statute of limitations "begins to run when the circumstances are sufficient to raise a suspicion of wrongdoing, i.e., when a plaintiff has notice or information of circumstances sufficient to put a reasonable person on inquiry." (*Mills v. Forestex Co.* (2003) 108 Cal.App.4th 625, 648; see also *Moreno v. Sanchez* (2003) 106 Cal.App.4th 1415, 1423 ["a cause of action under the discovery rule accrues when the plaintiff discovers or should have discovered all facts essential to his cause of action … ; this has been interpreted under the discovery rule to be when plaintiff either (1) actually discovered his injury and its negligent cause or (2) could have discovered injury and cause through the exercise of reasonable diligence." [internal quotations omitted]".)

The *Moreno* court noted that "judicial decisions have declared the discovery rule applicable in situations where the plaintiff is unable to see or appreciate a breach has occurred. These sorts of situations typically involve underground trespass, negligently manufactured drugs, products liability, violations of the right of privacy, *latent defects in real property*, [(see, e.g., *Allen v. Sundean* (1982) 137 Cal.App.3d 216, 222 [186 Cal. Rptr. 863])] *or breaches of contract committed in secret*. [(See, e.g., *April Enterprises, Inc. v. KTTV* (1983) 147 Cal.App.3d 805, 832.)] [¶] Delayed accrual of a cause of action is viewed as particularly appropriate where the relationship between the parties is one of special trust such as that involving a fiduciary, confidential or privileged relationship." (*Moreno*, supra, 106 Cal.App.4th at pp. 1423–1424 [italics added, fns. omitted].)

Here, the FAC does not reflect that Plaintiffs were on notice of all the alleged defects and deficiencies with the property on or before the close of escrow on November 2, 2021. Instead, Plaintiffs allege that they did not discover Vanguard's failure to disclose until January 2023. (FAC at ¶ 15.) They further allege tolling of the limitations period during the parties' pre-litigation mediation process. (*Id*. at ¶ 21.)

It is not appropriate to sustain a demurrer based on the statute of limitations unless the defects "clearly and affirmatively appear on the face of the complaint; it is not enough that the complaint shows that the action may be barred." (*Committee for Green Foothills v. Santa Clara County Bd. of Supervisors* (2010) 48 Cal.4th 32, 42.) Defendants' reliance on *Grisham v. Philip Morris U.S.A., Inc.* (2007) 40 Cal.4th 623, 638 is inapt (Demurrer at 11:7-13), the FAC does not "clearly and affirmatively" show that Plaintiffs' claims are time-barred.

The Demurrer on this ground is **overruled**.

<u>Uncertainty</u>

Defendants also demurrer to Plaintiffs' second, third, fourth, fifth, sixth, and seventh causes of action on the grounds that they are fatally uncertain. However, the memorandum of points and authorities argues only that the second cause of action for breach of written contract for the sale of real property is uncertain and ambiguous. The bulk of this section of the brief relates to the discovery rule, which the Court discusses further, above.

Defendants argue that as they are not a party to the Residential Purchase Agreement, "it is unclear as to what breach of a written contract, if any, Plaintiffs are alleging." (Demurrer at 11:23-25.)

Uncertainty is a disfavored ground for demurring to a complaint. (See, e.g., *Khoury v. Maly's of California* (1993) 14 Cal.App.4th 612, 616; 1 Weil & Brown, Civil Procedure Before Trial (The Rutter Group 2011) § 7:84, p. 7-39.) A demurrer for uncertainty generally will be sustained only when the complaint is such that the defendant cannot even determine what it must respond to. (*Williams v. Beechnut Nutrition Corp*. (1986) 185 Cal.App.3d 135, 139.)

Here, however, there does seem to be some lack of clarity with respect to the agreements between the parties. The FAC alleges that "Vanguard acted as the dual agent for both seller and buyer in connection with the sale of the Property to Plaintiffs herein." (FAC at ¶ 3.) The FAC further alleges that "the Realtor Defendants provided Plaintiffs with a variety of written real estate disclosures and made certain oral disclosures with regard to the Property, many of which were misleading, incomplete or untrue." (*Id.* at ¶ 11.) It is unclear whether Plaintiffs' breach of contract claim against Defendants is based on the contract they have with them as an agent or under a third-party beneficiary theory with respect to the Residential Purchase Agreement.

The Opposition fails to clarify this issue. Plaintiffs refer to paragraph 11 of the FAC and argue that the allegations of the FAC are sufficiently clear to apprise the Defendants of the issues to be met. The Court cannot agree.

The Demurrer to Plaintiffs second cause of action for breach of written contract is **sustained**, with leave to amend.

<u>Declaratory Relief</u>

Finally, Defendants demur to Plaintiffs' declaratory relief cause of action on the grounds that "there is no actual controversy between Plaintiffs and Defendants, since Plaintiffs cannot sustain their Complaint against these Defendants." (Dem. at 12:14-15.) With the exception of Plaintiffs' uncertain breach of contract cause of action, that is not the case (as discussed above). The demurrer to this cause of action is **overruled**.

6. 9:00 AM CASE NUMBER: C25-02275
CASE NAME: SHERYL ILEDAN VS. DEREK THIBODEAU
HEARING ON SUMMARY MOTION SUMMARY ADJUDICATION ON THE CROSS-COMPLAINT
FILED BY: THIBODEAU, DEREK
<u>*TENTATIVE RULING:*</u>

Parties emailed Department 32 to vacate the hearing. Hearing is vacated.

7. 9:00 AM CASE NUMBER: C25-02614
CASE NAME: D&A TRANS, INC., VS. BMW OF NORTH AMERICA, LLC,
***HEARING ON MOTION FOR DISCOVERY COMPEL PLAINTIFF D&A TRANS, INC.'S DEPOSITION**
FILED BY: BMW OF NORTH AMERICA, LLC,
****TENTATIVE RULING:****

The deposition has been taken on 4/8/26. Plaintiff's attorney apparently failed/refused to confirm dates for plaintiff's deposition until defendant's attorney filed the motion to compel herein; thus the time spent on filing the motion appears to have been the necessary "motivating factor" to complete the deposition. Defendant's attorney's request for attorney's fees in the amount of $1,600 is granted and shall be paid by defendant and/or his attorney within 30 days from the date of this hearing.

8. 9:00 AM CASE NUMBER: C25-03405
CASE NAME: PATRICIA WELLER VS. THEODORE SABERI
HEARING ON DEMURRER TO: COMPLAINT
FILED BY: RIZVI, DOLLY
****TENTATIVE RULING:****

The Demurrer is moot since Plaintiff filed her First Amended Complaint on 3/30/26.

9. 9:00 AM CASE NUMBER: C26-00197
CASE NAME: JEFFREY JOSEPH HUMBLE VS. RALPH WHITE , III
HEARING IN RE: MINORS COMPROMISE CLAIM
FILED BY:
****TENTATIVE RULING:****

The Minor's Compromise is approved on the terms and conditions set forth in the Petition for Approval of the Claim and the appointment of his Guardian ad Litem. He seems to have made a good recovery from his injuries and the net proceeds from the settlement will be used to purchase an annuity for his benefit and/or placed in a blocked account for his benefit when he reaches majority.

10. 9:00 AM CASE NUMBER: C26-00251
CASE NAME: JAMES BREEN VS. LAW OFFICES OF JONATHAN D. LAROSE
***HEARING ON MOTION IN RE: TO STRIKE JAMES BREEN'S COMPLAINT PURSUANT TO CCP 425.16**
FILED BY: LAW OFFICES OF JONATHAN D. LAROSE
****TENTATIVE RULING:****

Before the Court is Defendants Law Office of Jonathan D. Larose, Johnathan D. Larose, and Kristine Griffith's ("Moving Defendants") Special Motion to Strike Complaint pursuant to Code of Civil Procedure section 425.16. Mr. Larose and Ms. Griffith are attorneys that work at the Law Office of

Jonathan D. Larose.

Moving Defendants' Request for Judicial Notice is **granted**. (Evid. Code § 452(d).)

On April 17, Plaintiff filed a "Supplemental Response to Defendants' Reply." There is no provision in the Code of Civil Procedure, generally, for the filing of a 'supplemental response' or 'sur-reply' (no matter how titled). The decision whether to consider such papers is within the discretion of the trial court. (*Guimei v. General Electric Co.* (2009) 172 Cal.App.4th 689, 704.) The Court declines to exercise such discretion and will not consider Plaintiff's Supplemental Response as he failed to seek leave of Court to file such a document.

Procedural Background

This matter pertains to the Moving Defendants actions in representing Plaintiff James Breen's wife (Heather Breen) during the couple's underlying dissolution and family law action – Contra Costa Superior Court case D23-04556 (the "Underlying Action"). The Underlying Action included litigation of child custody and visitation relating to the Breen's minor child.

The Complaint outlines several actions by the Moving Defendants made during the Underlying Action which Plaintiff claims were improper and factually inaccurate. For example, it is alleged that at a hearing on March 11, 2024, Defendant Griffith orally asserted that Heather Breen "had fled with the child due to fear for her safety and the safety of the child, effectively accusing Plaintiff of domestic abuse and child endangerment." (¶ 34.) The Complaint alleges Defendant Griffith knew this to be false at the time. (¶ 35.) All the allegations relate to the actions of the Moving Defendants in representing Heather Breen during the Underlying Action.

Based on the allegations in the Complaint, Plaintiff asserts two causes of action: (1) intentional infliction of emotional distress, and (2) civil conspiracy. The Moving Defendants move to strike the Complaint pursuant to Code of Civil Procedure section 425.16, California's 'anti-SLAPP' statute.

Analysis

In *Baral v. Schnitt* (2016) 1 Cal.5th 376, the California Supreme Court explained the two-step approach courts take in ruling on an anti-SLAPP motion:

> First, the defendant must establish that the challenged claim arises from activity protected by section 425.16. [citation] If the defendant makes the required showing, then burden shifts to the plaintiff to demonstrate the merit of the claim by establishing a probability of success. (*Id.* at 384.)

"[T]he only thing the defendant needs to establish to invoke the [potential] protection of the SLAPP statute is that the challenged lawsuit arose from an act on the part of the defendant in furtherance of her right of petition or free speech." (*Equilon Enterprises v. Consumer Cause, Inc.* (2002) 29 Cal.4th 53, 61 quoting *Fox Searchlight Pictures, Inc. v. Paladino* (2001) 89 Cal.App.4th 294, 307.) To do so, the defendant must show that the "conduct by which plaintiff claims to have been injured falls within one of the four categories described in subdivision (e)" of section 425.16. (*Id.* at 66.)

Subdivision (e) of section 425.16 states, in pertinent part:

> [An] 'act in furtherance of a person's right of petition or free speech under the United States or California Constitution in connection with a public issue' includes: (1) any

> written or oral statement or writing made before a … judicial proceeding, or any other official proceeding authorized by law…" (Code Civ. Proc.§ 425.16(e).)

If the statements or actions at issue were made before or in connection with a judicial proceeding, there is no separate requirement that the statements or actions be made in connection with a 'public issue.' (*Briggs v. Eden Council for Hope & Opportunity* (1999) 19 Cal.4th 1106, 1118.)

Protected Activity

Plaintiff's Complaint names the Law Office of Jonathan D. Larose and two of its individual attorneys – Mr. Larose and Ms. Griffith – as defendants based on their actions in representing Heather Breen in the Underlying Action.

Protected activity covered by section 425.16 includes a "statement or writing made before a … judicial proceeding." (Code Civ. Proc. § 425.16(e).) It also includes "any written or oral statement made in connection with an issue under consideration or review by a … judicial body." (*Ibid.*) A "statement is 'in connection with' litigation under section 425.16, subdivision (e)(2) if it relates to the substantive issues in the litigation and is directed to persons having some interest in the litigation." (*Neville v. Chudacoff* (2008) 160 Cal.App.4th 1255, 1266.) This also includes "qualifying acts committed by attorneys in representing clients in litigation." (*Rusheen v. Cohen* (2006) 37 Cal.4th 1048, 1056.)

"The anti-SLAPP statute's definitional focus is not the form of the plaintiff's causes of action but, rather, the defendant's *activity* that gives rise to his or her asserted liability – and whether that activity constitutes protected speech or petitioning." (*Navellier v. Sletten* (2002) 29 Cal.4th 82, 92.) The statute does not "require that a defendant moving to strike under section 425.16 demonstrate that its protected statements or writing were made *on its own behalf* (rather than, for example, on behalf of its clients or the general public.)" (*Briggs v. Eden Council for Hope & Opportunity* (1999) 19 Cal.4th 1106, 1116.)

All the allegations in the Complaint relate to statements made in, or litigation activities related to, the Underlying Action. As such, Defendants have met their burden to "establish that the challenged claim arises from activity protected by section 425.16." (*Baral, supra,* 1 Cal.5th at 384.) As the activity related to statements made in a judicial proceeding, there is no need to show that it was also made in connection with a 'public issue.' (*Briggs,* 19 Cal.4th at 1118.)

Illegality exception

Plaintiff appears to argue that Moving Defendants' actions were so egregious that they should not be protected by the anti-SLAPP statute. The California Supreme Court has found section 425.16, "by its express terms, does not apply to any activity that can conceivably be characterized as being 'in furtherance' of a defendant's protected speech or petition rights if, as a matter of law, that activity was illegal and by reason of the illegality not constitutionally protected." (*Flatley v. Mauro* (2006) 39 Cal.4th 299, 316.) "In such a narrow circumstance, where either the defendant concedes the illegality of its conduct or the illegality is conclusively shown by the evidence, the motion must be denied." (*Ibid.*)

There is no evidence, much less "conclusive" evidence that the Moving Defendant's actions are criminal in nature. All the allegations relate to advocacy on behalf of a client during litigation. Even if the actions described could be considered a violation of an attorney's ethical duties, such violations are not ‘criminal activity.’ (See e.g. *Fremont Reorganizing Corp. v. Faigin* (2011) 198 Cal.App.4th 1153, 1169.)

Probability of Success

As Defendants met their initial burden, the burden shifts to Plaintiffs to “demonstrate the merit of the claim by establishing a probability of success.” (*Baral, supra,* 1 Cal.5th at 384.) “To show a probability of prevailing for purposes of section 425.16, a plaintiff must ‘make a prima facie showing of facts which would, if proved at trial, support a judgment in plaintiff’s favor.’” (*ComputerXpress, Inc. v. Jackson* (2001) 93 Cal.App.4th 993, 1010, internal quotation marks omitted.)

To do this, “a plaintiff seeking to demonstrate the merit of the claim ‘may not rely solely on its complaint, even if verified; instead, its proof must be made upon competent admissible evidence.’” (*Sweetwater Union High School Dist. v. Gilbane Building Co.* (2019) 6 Cal.5th 931, 941 (“*Sweetwater*”) quoting *San Diegans for Open Government v. San Diego State University Research Foundation* (2017) 13 Cal.App.5th 76, 95.)

The anti-SLAPP statute describes what evidence a court may consider at the second step. “It provides that ‘[i]n making its determination, the court shall consider the pleadings, and supporting and opposing affidavits stating the facts upon which the liability or defense is based.’” (CCP §425.16(b)(2).) In lieu of an affidavit, declarations are allowed. (*Sweetwater*, supra, 6 Cal.5th at 941.)

While Plaintiff provides a declaration and submits several exhibits, he fails to explain how these documents relate to the causes of action alleged in his complaint. In fact, there is no legal discussion at all regarding his causes of action, the elements thereof, or the connection of any evidence to those elements. While Plaintiff cites to the evidence he submits, he fails to provide any analysis or “tie the evidence to any element of any cause of action alleged in [his] complaint. [This is] a requirement for an anti-SLAPP motion which involves a ‘summary-judgment-like procedure.’” (*MMM Holdings, Inc. v. Reich* 2018) 21 Cal.App.5th 167, 186.)

Accordingly, Plaintiff has failed to meet his burden to show that he is likely to prevail on his claims. An additional reason showing Plaintiff is not likely to succeed relates to Defendant’s arguments relating to the litigation privilege, discussed below.

Litigation Privilege

Civil Code section 47(b) sets for the so-called ‘litigation privilege,’ which broadly protects communications made during judicial proceedings. It defines a “privileged publication” to include one made in any “judicial proceeding.” That section “has been given broad application,” and is now “held applicable to any communication, whether or not it amounts to a publication [citations] and all torts except malicious prosecution.” (*Silberg v. Anderson* (1990) 50 Cal.3d 205, 211-12.) It applies to “any publication required or permitted by law in the course of a judicial proceeding to achieve the objects of the litigation, even though the publication is made outside the courtroom and no function of the court or its officers is involved.” (*Id.* at 212.)

The publication “need not be pertinent, relevant, or material in a technical sense to any issue in the action; it need only have some connection or relation to the proceedings.” (*Portman v. George McDonald Law Corp.* (1979) 99 Cal.App.3d 988, 991.) The privilege applies even where the testimony “is allegedly perjured and malicious.” (*Id.* at 990.) “The resulting lack of any really effective civil remedy against perjurers is simply part of the price that is paid for witnesses who are free from intimidation by the possibility of civil liability for what they say.'" (*Ibid.*)

"The usual formulation is that the privilege applies to any communication (1) made in judicial or quasi-judicial proceedings; (2) by litigants or other participants authorized by law; (3) to achieve the objects of the litigation; and (4) that have some connection or logical relation to the action." (*Silberg*, supra, 50 Cal.3d at 212.)

As outlined by Defendants, all of Plaintiff's claims relate to privileged publications made by Moving Defendants. First, each of the statements was made during the Underlying Action – i.e. during a judicial proceeding. Second, they were made by 'other participants authorized by law' in that they were made by Heather Breen's counsel of record during that proceeding. Third, all the alleged statements relate to the Moving Party's representation of Heather Breen and were related to attempting to achieve their goals therein. Finally, each of the alleged communications had some connection to the Underlying Action.

As all the conduct alleged is privileged under section 47(b), there is no way Plaintiff can establish a "probability of success" on the merits. Accordingly, the Court need not address the other arguments made by Defendant showing that Plaintiff has not shown and cannot show that he is likely to prevail.

Attorneys' Fees

A "prevailing defendant on a special motion to strike shall be entitled to recover that defendant's attorney's fees and costs." (Code Civ. Proc. § 425.16(c).) The award of attorney fees is "mandatory." (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1131.) As Defendants are the prevailing parties on this anti-SLAPP motion, they are entitled to their attorney fees. As noted by Defendants, they will file a separate noticed motion for those fees. The Court will address the propriety of the amount of fees at that time.

Conclusion

Based on the above, Moving Defendants' Special Motion to Strike is **granted**.

11. 9:00 AM CASE NUMBER: L24-04434
CASE NAME: ANHEUSER-BUSCH, LLC VS. CHRISTINA PABST
***MOTION/PETITION TO COMPEL ARBITRATION MOTION TO COMPEL INDIVIDUAL ARB AND DISMISS OR STAY CROSS COMP FILED BY PLN ON 12/19/25**
FILED BY: ANHEUSER-BUSCH, LLC
****TENTATIVE RULING:****

Plaintiff Anheuser's Motion to Compel its former employee Christina Pabst to submit her claims to **individual** arbitration is granted. Ms. Pabst's Cross-Complaint shall otherwise be stayed in its entirety to allow the arbitration to proceed to completion.

When Ms. Pabst applied for employment with Anheuser, she agreed on her application that resolution of any claims between her and Anheuser would be subject to final and binding arbitration and that arbitration would be the exclusive method she and Anheuser would have for final and binding resolution of claims covered by the Company's Dispute Resolution Program. When she was made an offer of employment, the offer letter reiterated that the DRP would be a term and condition of employment and her exclusive remedy for any employment claims she might have. She subsequently accepted and began her employment with the company.

12. 9:00 AM CASE NUMBER: MSC19-02639
CASE NAME: VEGA VS GAGNI
***HEARING ON MOTION IN RE: RELIEF FROM STAY AND GFS BTWN BAES AND VEGA**
FILED BY: BAY AREA ESCROW SERVICES
****TENTATIVE RULING:****

Granted – Based on Non-opposition of Defendant Bay Area Escrow Services.

13. 9:00 AM CASE NUMBER: MSC20-02420
CASE NAME: ROBINSON VS ANTIOCH UNIFIED SCHOOL
***HEARING ON MOTION IN RE: BIFURCATE TRIAL**
FILED BY: ANTIOCH UNIFIED SCHOOL DISTRICT
****TENTATIVE RULING:***

Appearance required by Attorneys who will actually "try" the case.

Appearances may be at 10:00 AM at the time set for the issue Conference.

14. 9:00 AM CASE NUMBER: MSC21-00470
CASE NAME: DOTSON VS CINEMARK USA INC.
***HEARING ON MOTION IN RE: QUASH SUPPLEMENTAL EXPERT DISCLOSURES AND ISSUE PROTECTIVE ORDER**
FILED BY: CENTURY THEATERS, INC.
****TENTATIVE RULING:****

The Court has received an ex parte request which is unopposed to continue the trial based on unavailability of counsel. The Motion to Continue is granted and the matter is set for trial setting conference on July 27, 2026, 8:30AM, D.32.

The Motion to Quash is, therefore, not ruled on and the parties are ordered to meet and confer and resolve the "expert witness" issues in light of the continuance.

ADD-ON Law & Motion

9:00 AM CASE NUMBER: MSC21-01540
CASE NAME: BOWLES & VERNA VS PHAM, ET AL.
HEARING ON SUMMARY MOTION CONT'D PER T/R OF 4/3/26
FILED BY:
TENTATIVE RULING:*

Defendant Le Thi Hong Phams' motion for **summary judgment is denied.** Her motion for **summary adjudication is denied as to cause of action three and otherwise granted.**

In the FAC, Plaintiff Bowles & Verna LLP sued Le Thi Hong Pham (Le Pham) for breach of contract, unjust enrichment, account stated, quantum meruit and breach of contact. Plaintiff alleges that they did legal work for Pham's brothers: Nhan Van Pham and "Ricky" Hai Thanh Pham and are owed $143,600.79. Plaintiff also alleges that Defendant Le Pham breached her agreement to pay for the legal work. (FAC ¶¶24, 25.) Plaintiff was unaware of the Le Pham's agreement with her brothers until after this case was filed. (Bowles dec. ¶10.)

Plaintiff is also suing Defendants Nhan Van Pham and Tuyet Le for $110,800.35 in unpaid legal work, but it is not seeking recovery of those fees from Le Pham. (FAC prayer for relief.)

<u>Breach of contract (causes of action two and six)</u>

The second and sixth causes of action for breach of contract against Le Pham are based on a third-party beneficiary theory.

"In California, as in other jurisdictions, it is well established that under some circumstances a third party may bring an action for breach of contract based upon an alleged breach of a contract entered into by other parties. Civil Code section 1559, enacted as one of the provisions of the original 1872 Civil Code, declares: 'A contract, made expressly for the benefit of a third person, may be enforced by him at any time before the parties thereto rescind it.'" (*Goonewardene v. ADP, LLC* (2019) 6 Cal.5th 817, 826-827.)

Civil Code section 1559 provides that a contract "made expressly for the benefit of a third person, may be enforced by him at any time before the parties thereto rescind it." " '[T]he third person need not be named or identified individually to be an express beneficiary.' [Citations.]" (*Spinks v. Equity Residential Briarwood Apartments* (2009) 171 Cal.App.4th 1004, 1023.)

A third-party beneficiary must show: "(1) whether the third party would in fact benefit from the contract, but also (2) whether a motivating purpose of the contracting parties was to provide a benefit to the third party, and (3) whether permitting a third party to bring its own breach of contract action against a contracting party is consistent with the objectives of the contract and the reasonable expectations of the contracting parties. All three elements must be satisfied to permit the third party action to go forward." (*Goonewardene, supra,* 6 Cal.5th at 830.) As to the second element, "the contracting parties must have a motivating purpose to benefit the third party, and not simply knowledge that a benefit to the third party may follow from the contract." (*Ibid*.)

In *Goonewardene*, an employee filed an action against her former employer for failure to pay wages due and for wrongful termination. She also sued her employer's payroll services provider for breach of contract by failing to provide her with adequate documentation and records regarding her compensation. The California Supreme Court held that the employee was not a third-party beneficiary of the contract between the employer and the payroll services company. It explained that the motivating purpose of a payroll services agreement is to assist the employer in performing its required tasks, and not to benefit its employees with regard to paying their wages. (*Id*. at 835.)

Here, Plaintiff alleges that the brothers (Nhan Van Pham and Ricky Hai Pham) entered into a contract with Le Pham where she agreed to pay for Bowles & Verna's legal services. (FAC ex. C.) It is undisputed that the brothers and Le Pham entered into the agreement (the "ELOC").

The agreement is an Equity Line of Credit for $200,000. "This line of credit is obtained to finance the litigation involving the ownership of the Gas station [Grand-Mandana]… . Le Thi Hong Pham promises to advance the legal fees until the case is finally settled." (ELOC ¶1.) Once the case is settled, the gas station would be sold and Le Pham would receive 40% of the proceeds of the sale of the gas station. (ELOC ¶2, 4.) The parties agreed to "honor this agreement and will not litigate against each other." (ELOC ¶8.) The agreement was dated April 16, 2019. (ELOC.)

Both sides argue over the interpretation of the ELOC. "Contract interpretation is a question of law. … 'The fundamental goal of contractual interpretation is to give effect to the mutual intention of the parties.' [Citation.] When language in a contract is clear and explicit, that language governs interpretation. [Citation.] 'When an instrument is susceptible to two interpretations, the court should give the construction that will make the instrument lawful, operative, definite, reasonable and capable of being carried into effect and avoid an interpretation which will make the instrument extraordinary, harsh, unjust, inequitable or which would result in absurdity.' [Citation.]" (*Canyon Vineyard Estates I, LLC v. DeJoria* (2022) 78 Cal.App.5th 995, 1003.)

Defendant argues that the ELOC's motivating purpose did not include benefiting Bowles & Verna. Defendant also argues that the language in the ELOC that states the parties will not litigate against each other and thus, Plaintiff does not have the right to sue under the ELOC. Defendant has met her initial burden of showing that the ELOC's motivating factors did not include benefiting Bowles & Verna.

In opposition, Plaintiff argues that a motivating factor of the ELOC was ensuring the attorney bills would be paid so that the parties could realize the objectives of the litigation. Plaintiff's argument is not persuasive. While Bowles & Verna may have benefited from the ELOC such benefit was incidental to the agreement. The ELOC does not show that one of its motivating purposes was to benefit Bowles & Verna.

Therefore, the Court finds that Bowles & Verna is not a third-party beneficiary of the ELOC and as such, the breach of contract claims against Le Pham fail.

Defendant also argues that if Plaintiff is allowed to proceed as a third party beneficiary under the contract, the claim fails because the ELOC was rescinded. The Court has provided the analysis below in the event it changes its ruling on the third-party beneficiary analysis.

Le Pham loaned her brothers more than $150,000 between May 2019 and October 2020. (Le Pham dec. ¶15.) Le Pham declares that on August 16, 2020, the court ruled that the brothers had previously sold their interest in the gas station business and once she realized this she "immediately informed them [she] was not going to loan them any more funds and demanded repayment of the funds [she] had previously loaned Nhan." (Le Pham dec. ¶¶17, 18, 19.) Le Pham states that within a week, Nhan and his wife Tuyet repaid $48,260 on October 16, 2020. (Le Pham dec. ¶20.)

Le Pham has not met her burden of showing that when she rescinded the contract nothing was owed to Bowles & Verna. Assuming that the date of rescission cuts off a claim for attorney fees incurred after that date, Le Pham has not shown what work occurred up to the date of rescission and what fees, if any, were left unpaid at that time. As the moving party on this motion, Le Pham has the initial burden of showing that nothing was owed at the time of rescission. Otherwise, if anything was owed to Bowles & Verna at the time of rescission, they could bring a claim for those fees (assuming that Plaintiff prevails on its third-party beneficiary theory).

Having found that benefiting Bowles & Verna was not a motivating factor of the ELOC, the Court grants summary adjudication as to causes of action two and six.

<u>Unjust Enrichment (cause of action three)</u>

Defendant argues that unjust enrichment is not a cause of action in California. Plaintiff disagrees.

Court of Appeals have disagreed on whether unjust enrichment is a cause of action or just a remedy. The First District has taken both positions. (*McBride v. Boughton* (2004) 123 Cal.App.4th 379, 387 [unjust enrichment is not a cause of action]; *Elder v. Pacific Bell Telephone Co*. (2012) 205 Cal. App. 4th 841, 857 [unjust enrichment is a cause of action].)

The Second District has also taken both positions. Several cases have found that unjust enrichment is not a cause of action. (*Melchior v. New Line Prods., Inc.* (2003) 106 Cal.App.4th 779, 793; *De Havilland v. FX Networks, LLC* (2018) 21 Cal.App.5th 845, 870; *Bank of New York Mellon v. Citibank, N.A.* (2017) 8 Cal.App.5th 935, 955;.) While other cases have stated that unjust enrichment is a cause of action. (*Professional Tax Appeal v. Kennedy-Wilson Holdings, Inc.* (2018) 29 Cal.App.5th 230, 238; *Prakashpalan v. Engstrom, Lipscomb & Lack* (2014) 223 Cal.App.4th 1105, 1132; *Lectrodryer v. SeoulBank* (2000) 77 Cal.App.4th 723, 726.)

The Fourth District has found that unjust enrichment is a cause of action. (*Peterson v. Cellco* (2008) 164 Cal.App.4th 1583, 1593; *Durell v. Sharp Healthcare* (2010) 183 Cal.App.4th 1350, 1370.)

As one court explained,"[t]here is no cause of action in California labeled 'unjust enrichment.' [Citations.] But '[c]ommon law principles of restitution require a party to return a benefit when the retention of such benefit would unjustly enrich the recipient; a typical cause of action involving such remedy is "quasi-contract."' [Citations.]" (*City of Oakland v. Oakland Raiders* (2022) 83 Cal.App.5th 458, 477.) " 'Whether termed unjust enrichment, quasi-contract, or quantum meruit, the equitable remedy of restitution when unjust enrichment has occurred 'is an *obligation* (not a true contract [citation]) created by the law without regard to the intention of the parties … .'" [Citations.]" (*City of Oakland, supra,* 83 Cal.App.5th at 477-478.)

Several of the cases that found there was a cause of action for unjust enrichment relied on *Ghirardo v. Antonioli* (1996) 14 Cal.4th 39. There, the defendant argued the plaintiff was "not entitled to relief because he did not plead a cause of action for unjust enrichment in his complaint." The California Supreme Court rejected this argument, finding that "[t]he complaint set forth a common count 'for payment of money' that rests on a theory of unjust enrichment. The claim was adequately pleaded and proved." (*Id*. at 54.)

Although case law is far from clear, the Court finds that unjust enrichment is a legally valid cause of action.

Defendant also argues that to the extent unjust enrichment is a valid cause of action, it fails here because Pham did not receive any benefit and unjust enrichment requires a wrongfully retained benefit. (*First Nationwide Savings v. Perry* (1992) 11 Cal.App.4th 1657, 1662.)

In the quantum meruit cause of action, Defendant argues that she received no benefit from Bowles & Verna's work on her brothers' case. In opposition, however, Plaintiff argues that Defendant had an interest in the outcome of the case and thus, benefited from Plaintiff's work on the case. While the case was not ultimately successful, the brothers benefited from the work by their attorneys at Bowles & Verna. Since the ELOC stated that Le Pham had a 40% interest in the sale of the gas station should the brothers' litigation prevail, there is a triable issue as to whether she wrongfully retained benefit from the work by Bowles & Verna.

The motion for summary adjudication as to the third cause of action is denied.

<u>Account Stated (cause of action four)</u>

"The essential elements of an account stated are: (1) previous transactions between the parties establishing the relationship of debtor and creditor; (2) an agreement between the parties, express or implied, on the amount due from the debtor to the creditor; (3) a promise by the debtor, express or implied, to pay the amount due. [Citations.]" (*Zinn v. Fred R. Bright Co.* (1969) 271 Cal.App.2d 597, 600.) "In the usual situation, it comes about by the creditor rendering a statement of the account to the debtor. If the debtor fails to object to the statement within a reasonable time, the law implies his agreement that the account is correct as rendered. [Citations.]" (*Ibid*; *Maggio, Inc. v. Neal* (1987) 196 Cal.App.3d 745, 753.)

Le Pham argues that the complaint does not allege that Plaintiff ever sent invoices or other bills to Le and The FAC includes invoices for work done by Plaintiff, which were sent to Nhan Van Pham, Tuyet Le and Ricky Pham. (FAC ex. B.) None of these invoices show that they were sent to Le Pham. Further, Le Pham declares that Plaintiff did not communicate with her about these legal fees prior to initiating this lawsuit. (Le Pham dec. ¶28.)

In opposition, Plaintiff objects to the facts as immaterial or irrelevant, but does not provide evidence showing that they sent invoices to Le Pham.

The Court finds that Defendant has met her burden of showing that the account stated claim fails because she says she had no communications with Plaintiff regarding these fees. Further, Plaintiff has not provided evidence to the contrary. The motion for summary judgment as to the fourth cause of action is granted.

<u>Quantum Meruit (cause of action five)</u>

" 'To recover in quantum meruit, a party need not prove the existence of a contract [citations], but it must show the circumstances were such that 'the services were rendered under some understanding or expectation of both parties that compensation therefor was to be made.'" [Citation.]" (*County of Santa Clara v. Superior Court* (2023) 14 Cal.5th 1034, 1049-1050.)

"The underlying idea behind quantum meruit is the law's distaste for unjust enrichment. If one has received a benefit which one may not justly retain, one should 'restore the aggrieved party to his [or her] former position by return of the *thing* or its *equivalent* in money.' (1 Witkin, Summary of Cal. Law [(9th ed. 1987)] Contracts, § 91, p. 122.) [¶] The idea that one must be *benefited* by the goods and services bestowed is thus integral to recovery in quantum meruit; hence courts have always required that the plaintiff have bestowed some benefit on the defendant as a prerequisite to recovery. [Citation.]" (*Maglica v. Maglica* (1998) 66 Cal.App.4th 442, 449-450.)

"[I]n order to recover under a quantum meruit theory, a plaintiff must establish *both* that he or she was acting pursuant to either an *express or implied request* for such services from the defendant *and* that the services rendered were *intended to and did benefit* the defendant. One court summarized the rule as follows: 'The theory of quasi-contractual recovery is that one party has accepted and retained a benefit with full appreciation of the facts, under circumstances making it inequitable for him to retain the benefit without payment of its reasonable value.' [Citation.]" (*Day v. Alta Bates Medical Ctr.* (2002) 98 Cal.App.4th 243, 248.)

"To recover on a claim for the reasonable value of services under a quantum meruit theory, a plaintiff must establish both that he or she was acting pursuant to either an express or implied request for services from the defendant and that the services rendered were intended to and did benefit the defendant." (*Ochs v. PacifiCare of California* (2004) 115 Cal.App.4th 782, 794, internal citation omitted.)

Here, Le Pham declares that she was not a party to the Grand-Mandana lawsuit and did not receive any benefit from that lawsuit. (Le Pham dec. ¶¶24 and 27.) She also declares that she never made any representations to Bowles & Verna that she was a guarantor of the payment of legal bills and never paid Bowles & Verna any money related to the Grand-Mandana lawsuit. (Le Pham dec. ¶¶25 and 26.)

The Court finds that Le Pham has met her burden of showing that she did not promise to pay for the brother's legal fees and was not a party to the Grand-Mandana lawsuit. Thus, these facts show that Bowles & Verna did work to benefit the brothers, not Le Pham. Defendant has met her initial burden.

In opposition, Richard Bowles declares that Le Pham reached out to him and asked if Bowles & Verna could represent her brothers in the Grand-Mandana lawsuit. (Bowles dec. ¶4.) Le Pham accompanied her brothers at the initial meeting and would attend other meetings between Bowles and the brothers about Grand-Mandana lawsuit. (Bowles dec. ¶¶5, 7.) Bowles states that when first discussing the issue of payment, Le Pham assured him that the bills would be paid and funds available for Bowles & Verna's services, however, she did not disclose the Equity Line of Credit. (Bowles dec. ¶9.) Bowles did not learn of the ELOC until after this lawsuit was filed. (Bowles dec. ¶10.)

While there is a triable issue as to whether Le Pham told Bowles that she would pay her brother's attorney fees in the Grand-Mandana lawsuit, that triable issue is not material. Assuming that Le Pham orally agreed to pay her brothers' legal fees, there is no showing that the work Bowles & Verna did was intended to benefit Le Pham, as opposed to her brothers.

The evidence does not show that Le Pham and Bowles intended the work by Bowles & Verna to benefit Le Pham. It was only after Bowles & Verna stopped working on the case and sued the brothers that it first learned that Le Pham had an interest in the Grand-Mandana lawsuit. Thus, there is no evidence that that the services rendered were intended to benefit the defendant.

The Court finds that Plaintiff has not shown there is a triable issue of material fact as to the quantum meruit cause of action and the Court grants the motion for summary adjudication as to cause of action five.

Defendant's request for judicial notice of Business and Professions Code section 6148 is granted. Although, it is not usually necessary to request judicial notice of California Statutes.

Discovery Law & Motion

15. 9:01 AM CASE NUMBER: C24-03078
CASE NAME: THALBIR OLI VS. GOVIND SHAHI
***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO DEFENDANT GOVIND K. SHAHI'S FORM INTERROGATORIES, SET ONE**
FILED BY: SHAHI, GOVIND K.
****TENTATIVE RULING:****

Granted. Defendant shall provide further full and complete verified written answers to the following form interrogatories: 6.2, 6.5, within 30 days from the date of this hearing. If the parties continue to have discovery disputes, the Court will consider appointing a discovery special master/referee at their expense.

16. 9:01 AM CASE NUMBER: C24-03078
CASE NAME: THALBIR OLI VS. GOVIND SHAHI
***HEARING ON MOTION FOR DISCOVERY COMPEL CONTINUED DEPOSITION OF DEFENDANT SUSHOVAN SHAHI**
FILED BY: OLI, THALBIR
TENTATIVE RULING:*

Granted. Defendant shall be made available for additional deposition questioning of not to exceed 7 hours. The deposition shall be scheduled at a time mutually agreeable to the attorneys within the next 30 days from the date of this hearing. If the parties continue to have discovery disputes, the Court will consider appointing a discovery special master/referee at their expense.

17. 9:01 AM CASE NUMBER: C24-02991
CASE NAME: ROSALYN NAVAL-ZAHNER VS. JOELLE SCIMIA
***HEARING ON MOTION FOR DISCOVERY COMPEL PLAINTIFF TONY J. ZAHNER'S AMENDED RESPONSES TO CROSS-COMPLAINANT JOELLE MARY SCIMIA'S FORM INTERROGATORIES, SET ONE**
FILED BY: SCIMIA, JOELLE MARY
TENTATIVE RULING:*

Off calendar, case settled.